

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Whitney Beber	Team: Squad #06	CCRB Case #: 201903905	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 09/10/2018 9:00 PM, Monday, 09/10/2018 9:00 PM	Location of Incident: In front of 2015 Dorchester Road and the 70th Precinct stationhouse	18 Mo. SOL 3/10/2020	Precinct: 70
Date/Time CV Reported Mon, 05/06/2019 5:21 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 05/06/2019 5:21 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eric Gutierrez	03293	954903	070 PCT
2. SGT Robert Maynard	01792	928727	070 PCT
3. POM Paul Casale	16369	954610	070 PCT
4. An officer			070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Baggs	21920	959467	070 PCT
2. POM Shane Ellers	11415	960495	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eric Gutierrez	Abuse: Police Officer Eric Gutierrez stopped § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.	A . Exonerated
B . POM Paul Casale	Abuse: Police Officer Paul Casale stopped § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.	B . Exonerated
C . POM Eric Gutierrez	Abuse: Police Officer Eric Gutierrez searched the vehicle in which § 87(2)(b) was an occupant in front of 2015 Dorchester Road in Brooklyn.	C . Unsubstantiated
D . POM Eric Gutierrez	Abuse: Police Officer Eric Gutierrez questioned § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.	D . Exonerated
E . POM Eric Gutierrez	Abuse: Police Officer Eric Gutierrez frisked § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.	E . Exonerated
F . POM Eric Gutierrez	Abuse: Police Officer Eric Gutierrez searched § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.	F . Unsubstantiated
G . SGT Robert Maynard	Abuse: Sergeant Maynard detained § 87(2)(b)	G . Exonerated
H . POM Paul Casale	Abuse: Police Officer Paul Casale seized § 87(2)(b)'s property.	H . Exonerated
I . POM Eric Gutierrez	Abuse: Plice Officer Eric Gutierrez refused to provide his shield number to § 87(2)(b) at the 70th Precinct stationhouse.	I . Unfounded
J . SGT Robert Maynard	Discourtesy: Sergeant Robert Maynard spoke discourteously to § 87(2)(b)	J . Unsubstantiated
K . POM Eric Gutierrez	Abuse: Police Officer Eric Gutierrez seized § 87(2)(b)'s property in front of 2015 Dorchester Road in Brooklyn.	K . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
L . An officer	Abuse: An officer seized § 87(2)(b) s property.	L . Officer(s) Unidentified

Case Summary

On May 6, 2019 § 87(2)(b) filed the following complaint with CCRB in-person.

On September 10, 2018, at approximately 9:00 p.m. PO Eric Gutierrez and PO Paul Casale of the 70th Precinct stopped § 87(2)(b) who was double parked, in front of 2015 Dorchester Road in Brooklyn PO Gutierrez requested § 87(2)(b)'s license and registration and ordered him out of the vehicle (**Allegations A and B, Abuse of Authority, exonerated**). PO Gutierrez searched § 87(2)(b)'s vehicle (**Allegation C, Abuse of Authority, unsubstantiated**) and then asked if there was a gun in the vehicle, which § 87(2)(b) denied (**Allegation D, Abuse of Authority, unsubstantiated**). PO Gutierrez frisked and allegedly searched § 87(2)(b) (**Allegation E, exonerated and Allegation F, Abuse of Authority, unsubstantiated**). Additional officers from the 70th Precinct, including Sgt. Robert Maynard, responded. § 87(2)(b) was detained and taken to the 70th Precinct stationhouse (**Allegation G, Abuse of Authority, exonerated**). His vehicle was seized and subsequently searched at the stationhouse (**Allegation H, Abuse of Authority, exonerated**). After § 87(2)(b) was released, while still at the 70th Precinct stationhouse, he asked PO Gutierrez for his name and shield number. PO Gutierrez allegedly did not provide his shield number (**Allegation I, Abuse of Authority, unfounded**). § 87(2)(b) also spoke to Sgt. Maynard at the precinct stationhouse and accused him of being racist. Sgt. Maynard allegedly replied "Racist, my ass. I'm racist? You son of bitch. How the fuck am I racist?" (**Allegation J, Discourtesy, unsubstantiated**). Sgt. Maynard told § 87(2)(b) that the men in the neighborhood were "shit bags" (within **Allegation J**). § 87(2)(b)'s driver's license and jacket were not returned. (**Allegations K and L, Abuse of Authority, unsubstantiated and officer(s) unidentified**).

§ 87(2)(b)'s arrest was voided, and he was not charged with any violations or issued a summons. No video footage was obtained for this incident. § 87(2)(g).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Eric Gutierrez stopped § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Paul Casale stopped § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.

§ 87(2)(b) acknowledged he was double-parked in front of 2015 Dorchester Road. PO Gutierrez approached § 87(2)(b) who was seated in the vehicle with another passenger, § 87(2)(b) to issue the summons for the vehicle infraction. § 87(2)(b) was not summonsed or arrested for the infraction.

PO Gutierrez and PO Casale testified that they were in the neighborhood when they heard a radio call for shots fired a block from 2015 Dorchester Road. When they arrived, they observed § 87(2)(b)'s vehicle double-parked. They approached § 87(2)(b)'s vehicle, due to the infraction.

No person shall park on the roadway side of any vehicle stopped, standing or parked at the edge or curb of a street, NYS Vehicle and Traffic Law Section 1202 (BR06).

§ 87(2)(g)
it is therefore recommended that **Allegations A and B** be **exonerated**.

Allegation (C) Abuse of Authority: Police Officer Eric Gutierrez searched the vehicle in which § 87(2)(b) was an occupant in front of 2015 Dorchester Road in Brooklyn.

It is undisputed that PO Gutierrez ordered § 87(2)(b) out of the vehicle and he subsequently searched it. § 87(2)(g)

§ 87(2)(b) stated that after he provided his § 87(2)(b) credentials, license and registration to PO Gutierrez, PO Gutierrez asked § 87(2)(b) to step out of the vehicle. § 87(2)(b) complied, and PO Gutierrez brought § 87(2)(b) to the back of his vehicle. PO Casale told § 87(2)(b) to go to the back of the vehicle as well. § 87(2)(b) observed PO Gutierrez search the front and back of the driver's side as well as the center console of his vehicle. After the search of the vehicle, PO Gutierrez told § 87(2)(b) he found loaded magazines in plain view in the back of his vehicle. PO Gutierrez asked if he knew anything about that, which § 87(2)(b) denied.

PO Gutierrez testified that when he approached § 87(2)(b)'s vehicle, § 87(2)(b) had on latex gloves. PO Gutierrez asked § 87(2)(b) for his license and registration to issue him a summons for the vehicle infraction. § 87(2)(b) replied that he was an § 87(2)(b) and provided PO Gutierrez with his license, registration and § 87(2)(b) credentials. At that time PO Gutierrez observed a loaded pistol magazine in a white grocery bag through the rear driver's side window and shined his flashlight on it. Given that the loaded magazine was on the floor in the back seat, PO Gutierrez asked § 87(2)(b) to exit the vehicle to determine whether there were any additional weapons on § 87(2)(b) or in the rear of the vehicle. PO Gutierrez asked § 87(2)(b) to exit. PO Gutierrez looked underneath the seats, in the center console, the glove compartment and the rear seat of § 87(2)(b)'s vehicle. No weapons were recovered from the vehicle.

PO Casale testified that he approached the passenger side of the vehicle. PO Gutierrez informed him that he observed a bag with a loaded magazine in the back of the vehicle. However, he did not remember at what point PO Gutierrez shared this observation with him. PO Casale also observed a loaded magazine in a thin grocery store bag, but he did not remember if observed this while the bag was in the vehicle. PO Casale did not remember if he saw PO Gutierrez inside § 87(2)(b)'s vehicle and he did not remember if an officer searched the vehicle.

Sgt. Maynard did not remember seeing any officer on scene inside of § 87(2)(b)'s vehicle. However, PO Gutierrez showed Sgt. Maynard the loaded magazine he recovered from § 87(2)(b)'s vehicle.

PO Bags nor PO Ellers saw an officer search § 87(2)(b)'s vehicle.

Vouchers associated with § 87(2)(b)'s voided arrest were requested from the 70th Precinct stationhouse but there were negative results (BR07). § 87(2)(a) 160.50

PO Gutierrez's memo book noted that he observed loaded magazines in a plastic bag. PO Gutierrez searched the vehicle for additional weapons based on an observation of the magazines.

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation C** be **unsubstantiated**.

Allegation (D) Abuse of Authority: Police Officer Eric Gutierrez questioned § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.

§ 87(2)(b) stated that after PO Gutierrez's initial search of the vehicle, he returned to § 87(2)(b) and asked him where the gun was and if there was a gun in the vehicle. § 87(2)(b) replied that he had the right to possess a gun but did not have a gun on him. PO Gutierrez told § 87(2)(b) he found loaded magazines and asked if § 87(2)(b) knew anything about that, which § 87(2)(b) denied.

PO Gutierrez and PO Casale testified that § 87(2)(b) wore latex gloves, had a loaded magazine in the vehicle and approximately two hours prior there was a call for shots fired a block from the location.

§ 87(2)(a) 160.50 PO Gutierrez's memo book noted that he observed loaded magazines in a plastic bag (BR12).

The common-law right to inquire, is activated by a founded suspicion that criminal activity is afoot, People v. De Bour, 40 N.Y. 2d 210 (1976) (BR09).

§ 87(2)(g) Therefore, it is therefore recommended that **Allegation D** be **exonerated**.

Allegation (E) Abuse of Authority: Police Officer Eric Gutierrez frisked § 87(2)(b) in front of 2015 Dorchester Road in Brooklyn.

§ 87(2)(b) stated that PO Gutierrez frisked him, but he did not specify where on his body he was frisked.

PO Gutierrez acknowledged that he frisked § 87(2)(b) to determine whether there were any weapons on his person. PO Gutierrez did not observe a bulge on § 87(2)(b) but thought § 87(2)(b) may have been armed because of the loaded magazine he observed in the rear of the vehicle. PO Gutierrez frisked the front of § 87(2)(b)'s pants and his waistband. PO Casale also frisked § 87(2)(b) but PO Gutierrez did not see where on his body § 87(2)(b) was frisked. § 87(2)(g)

§ 87(2)(b) PO Gutierrez also stated that at the time § 87(2)(b) was brought to the precinct stationhouse, there were no charges against him. He was brought back to the precinct stationhouse to continue their investigation and attempt to verify his credentials.

PO Casale did not have an independent recollection that § 87(2)(b) was frisked. PO Casale did not know at what point § 87(2)(b) was under arrest. PO Casale stated that possession of loaded magazine was a violation of local law. In addition, PO Baggs and Sgt. Maynard did not see any officer frisk § 87(2)(b) on scene.

An officer has the authority to frisk if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed, People v. De Bour, 40 N.Y. 2d 210 (1976) (BR09).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation E** be **exonerated**.

Allegation (F) Abuse of Authority: Police Officer Eric Gutierrez searched § 87(2)(b) [REDACTED] in front of 2015 Dorchester Road in Brooklyn.

§ 87(2)(b) [REDACTED] testified that PO Gutierrez entered his pockets and removed everything.

PO Gutierrez testified that he did not enter any of § 87(2)(b) [REDACTED]'s pockets and remove anything. Neither PO Casale nor Sergeant Maynard remembered § 87(2)(b) [REDACTED] being searched and PO Baggs and PO Ellers did not see PO Gutierrez search § 87(2)(b) [REDACTED].

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Allegation (G) Abuse of Authority: Sergeant Robert Maynard detained § 87(2)(b) [REDACTED]
It is undisputed that § 87(2)(b) [REDACTED] was detained and taken to the 70th Precinct stationhouse for further investigation to verify the § 87(2)(b) [REDACTED] credentials he provided.

§ 87(2)(b) [REDACTED] stated after PO Gutierrez requested his license and registration, he provided that as well as his credentials as a federal officer which included his badge and identification.

PO Gutierrez testified that § 87(2)(b) [REDACTED] provided a paper form of identification with a photograph and a shield as his § 87(2)(b) [REDACTED] credentials. At the precinct stationhouse, PO Gutierrez confirmed § 87(2)(b) [REDACTED] was an § 87(2)(b) [REDACTED] and therefore could possess a firearm.

Sgt. Maynard testified that § 87(2)(b) [REDACTED] provided a laminated piece of paper as his § 87(2)(b) [REDACTED] credentials. The ID had a photo which matched § 87(2)(b) [REDACTED]'s appearance. Sgt. Maynard asked § 87(2)(b) [REDACTED] his name but he refused to answer. Sgt. Maynard told § 87(2)(b) [REDACTED] he wanted to verify his name and requested it approximately six to seven more times. § 87(2)(b) [REDACTED] refused each time. Sgt. Maynard believed that § 87(2)(b) [REDACTED] did not know the name on the ID and that he possessed someone else's identification. As he never saw a § 87(2)(b) [REDACTED] ID before, Sgt. Maynard decided to take § 87(2)(b) [REDACTED] to the precinct stationhouse because of the loaded magazine observed in § 87(2)(b) [REDACTED]'s vehicle, § 87(2)(b) [REDACTED]'s refusal to provide his name and for the safety of himself and the officers. The investigation continued at the precinct, which confirmed § 87(2)(b) [REDACTED] was a § 87(2)(b) [REDACTED]. He was immediately released, and his arrest was voided.

It is unlawful for a person who is not authorized to possess a pistol or revolver in the city to possess ammunition for the same, NYC Administration Code 10-131(i)(3) (BRX14). While a defendant is detained, the police should diligently pursue a means of investigation that is likely to confirm or dispel their suspicions quickly, People v. Hicks, N.Y. 2d 234 (1986) (BR15). When an arrest is made by a uniformed member of service and there is reasonable cause to believe the prisoner did not commit the offense or any related offense or it is determined that no offense has been committed, a member of service concerned must immediately release the prisoner, Patrol Guide

Section 221-13(BR16).

§ 87(2)(g)

it is recommended that **Allegation G** be **exonerated**.

Allegation (H) Abuse of Authority: Police Officer Casale seized § 87(2)(b)'s property.

It is disputed that § 87(2)(b)'s vehicle was double parked. Further he was arrested, and his vehicle was seized and brought to the 70th Precinct stationhouse.

PO Casale testified that § 87(2)(b)'s vehicle was not in a legal parking space at the time he was arrested and could not remain where it was parked. PO Casale confirmed that he seized the vehicle.

PO Gutierrez testified that while § 87(2)(b)'s vehicle was brought back to the stationhouse, he did not remember which officer did so. After § 87(2)(b)'s arrest was voided, PO Gutierrez took § 87(2)(b) to his vehicle outside of the precinct stationhouse.

Sgt. Maynard testified that § 87(2)(b)'s vehicle was brought back to the precinct stationhouse because he was under arrest and the vehicle was double parked. He did not know who brought the vehicle to the precinct stationhouse.

Vouchers associated with § 87(2)(b)'s voided arrest were requested from the 70th Precinct stationhouse but there were negative results (BR07).

Whenever a vehicle is taken into custody where the vehicle operator was arrested for a crime, members of service will comply with the procedure as outlined in Section 218-48 of the patrol guide including preparing a property invoice and vehicle seizure form, Patrol Guide Section 218-48 states (BR13).

§ 87(2)(g)

It is therefore recommended that **Allegation H** be **exonerated**.

Allegation (I) Abuse of Authority: Police Officer Eric Gutierrez refused to provide his shield number to § 87(2)(b) at the 70th Precinct stationhouse.

§ 87(2)(b) was brought to the 70th Precinct stationhouse and placed in a holding cell. Within two and a half hours, PO Gutierrez returned and apologized to § 87(2)(b) and told him the arrest was a mistake and they would void it. § 87(2)(b) asked PO Gutierrez for his name and shield number. PO Gutierrez provided his last name but not his shield number

PO Gutierrez testified that in response to § 87(2)(b)'s request for his name and shield he provided his last name and his shield number.

§ 87(2)(b) provided a recording of part of his conversation with PO Gutierrez at the 70th Precinct stationhouse. § 87(2)(b) is heard making a request for PO Gutierrez's name and shield number. PO Gutierrez stated, "PO Gutierrez" and "shield number as 3293". § 87(2)(b) asks for PO Gutierrez's first name, but PO Gutierrez refused to provide it (BR05).

A uniformed officer is to courteously and clearly state their rank, name, shield number, and

command to anyone who requests them to do so, Patrol Guide Section 203-09 (BR04).

§ 87(2)(g)

it is recommended that **Allegation I** be **unfounded**.

Allegation (J) Discourtesy: Sergeant Robert Maynard spoke discourteously to § 87(2)(b) at the 70th Precinct stationhouse.

§ 87(2)(b) testified that following being released from custody, and while still at the stationhouse, he approached Sgt. Maynard and asked him if he was racist. Sgt. Maynard allegedly responded, “Racist, my ass. I’m racist? You son of a bitch? How the fuck am I racist?” Sgt. Maynard added that the men in the neighborhood were “shit bags.”

Sgt. Maynard testified that § 87(2)(b) returned to the 70th Precinct stationhouse after he was initially released. As Sgt. Maynard walked through the stationhouse, he observed § 87(2)(b) yell at the desk officer. Sgt. Maynard spoke to § 87(2)(b) and explained the officer’s actions. Sgt. Maynard walked § 87(2)(b) to his vehicle and discussed the precinct, gangs, kids, and trouble. They shook hands and § 87(2)(b) left. § 87(2)(b) did not mention that he thought any of the officers’ actions were racist. Sgt. Maynard denied stating, “Racist my ass, I’m racist you son of a bitch, how the fuck am I racist?” or referring to anyone as “shit bags.” Sgt. Maynard did not use any profanity when he spoke to § 87(2)(b).

PO Ellers, PO Baggs and PO Gutierrez were all interviewed and either did not remember if § 87(2)(b) spoke with Sgt. Maynard or hear Sgt. Maynard use profanity towards § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **unsubstantiated**.

Allegation (K) Abuse of Authority: Police Officer Gutierrez seized § 87(2)(b) s property in front of 2015 Dorchester Road in Brooklyn.

Allegation (L) Abuse of Authority: An officer seized § 87(2)(b) s property at the 70th Precinct stationhouse.

§ 87(2)(b) alleged that he provided PO Gutierrez with his license and registration. § 87(2)(b) stated that his driver’s license was not returned. He also alleged that an officer at the stationhouse ordered him to remove his hooded windbreaker, which was also not returned.

PO Gutierrez testified that he returned § 87(2)(b) s vehicle to him, the magazine and his credentials and identification. § 87(2)(b) told him he was missing his identification. PO Gutierrez returned his identification to him immediately upon his release.

Sgt. Maynard testified that § 87(2)(b) complained his driver’s license was missing when he returned to the precinct stationhouse. Sgt. Maynard called PO Gutierrez to see if he had it, which he did not. Sgt. Maynard checked PO Gutierrez’s office but did not find it. Sgt. Maynard believed § 87(2)(b) eventually found it in his vehicle.

Vouchers associated with § 87(2)(b) s voided arrest were requested from the 70th Precinct stationhouse but there were negative results (BR07).

§ 87(2)(g)

it is recommended that **Allegations K and L** be closed as **officer unidentified**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two CCRB complaints and has been named as a victim in 19 allegations (BR3).
 - § 87(2)(b)
- PO Gutierrez has been a member of service for six years and has been a subject in nine CCRB complaints and 22 allegations, none of which have been substantiated. § 87(2)(g)
- PO Casale has been a member of service for six years and has been a subject in six CCRB complaints and ten allegations, none of which have been substantiated. § 87(2)(g)
- Sgt. Maynard has been a member of service for 18 years and has been a subject in five CCRB complaints and ten allegations, none of which have been substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with NYC claiming false arrest, false imprisonment, destruction of property, loss of income, and intentional infliction of emotional distress and seeking \$250,000 dollars as redress (BR01). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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